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IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **CAPTAIN G. SERRATO, IN HIS INDIVIDUAL AND OFFICIAL CAPACITIES AS COMMANDER, DUBLIN AREA, CALIFORNIA HIGHWAY PATROL,** Defendant.	4:26-cv-05953-ASK **JOINT STIPULATION TO CONTINUE INITIAL CASE MANAGEMENT CONFERENCE BASED UPON DELAY IN SERVICE OF DEFENDANT AND PENDING MOTION TO DISMISS AND ORDER** Date: September 15, 2026 Time: 1:30 p.m. Dept: Via Zoom Judge: The Honorable Ajay S. Krishnan Trial Date: None Set Action Filed: 6/17/2026

Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff"), appearing in pro se, and Defendant Captain G. Serrato in his individual and official capacities, ("Defendant") by and through his counsel of record, hereby stipulate as follows:

1. On June 17, 2026, Plaintiff filed his Complaint, alleging that Defendant violated Plaintiff's constitutional rights when Defendant denied Plaintiff's request for a U-Visa

certification. Plaintiff Complaint sought monetary damages as well as declaratory and injunctive relief.

2. Also on June 17, 2026, this Court issued an Order Setting Initial Case Conference and Management Conference and ADR Deadlines, setting a date of September 15, 2026, for the initial case management conference and ordering the parties to meet and confer pursuant to Federal Rule of Civil Procedure Rule 26(f) and file ADR Certification by August 25, 2026.

3. On July 15, 2026, Plaintiff filed a First Amended Complaint. Defendant was never served with the original Complaint and had not made an appearance in this matter when Plaintiff filed the First Amended Complaint.

4. On August 5, 2026, Defendant was served with the operative First Amended Complaint.

5. On August 26, 2026, Defendant made his first appearance in this matter by filing a Motion to Dismiss, seeking to dismiss the entire First Amended Complaint for failure to state a valid cause of action.

6. On August 27, 2026, Plaintiff filed an Opposition to Defendant's Motion to Dismiss. The hearing on Defendant's Motion to Dismiss is currently set for September 30, 2026.

7. On September 3, 2026, the parties met and conferred via phone in advance of the initial case management conference. Both parties agreed that the initial case management conference should be continued until after the Court has ruled on the pending Motion to Dismiss.

8. Continuing the initial case management conference is in the interest of all parties due to the timing of the service of the operative First Amended Complaint causing the parties to miss the meet and confer deadline set forth in the Court's initial Order. Continuing the initial case management conference until after the Court issues its ruling on the pending Motion to Dismiss will also save the time and resources of all parties and the Court because the Motion to Dismiss may narrow the legal issues in this litigation, even if the Court declines to grant the Motion to Dismiss in its entirety.

Accordingly, the parties respectfully request the Court to modify its initial scheduling order in this case as follows:

1. The initial case management conference be continued from September 15, 2026, to fourteen (14) days after the final Order on Defendant's Motion to Dismiss, or to any date thereafter which is convenient for the Court.
2. The September 8, 2026 deadlines for Rule 26(a)(1) initial disclosures and the Joint Case Management Statement, and the ADR certification deadline, set by the Court's June 17, 2026 Order Setting Initial Case Management Conference and ADR Deadlines, be vacated and reset based upon the continued initial case management conference date.

SO STIPULATED AND REQUESTED.

Dated: September 3, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/ Haiyang Allen Li
HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendant
California Highway Patrol
Captain G. Serrato in his individual and official capacities

Dated: September 3, 2026

BRENDAN NGEHSI NEWANFORBI
Plaintiff in Pro Per

ORDER

Pursuant to the parties' Stipulation, and good cause appearing, the Court orders the following:

The initial case management conference is hereby continued from September 15, 2026, to fourteen (14) days after the final Order on Defendant's Motion to Dismiss. The September 8, 2026 deadlines for Rule 26(a)(1) initial disclosures and the Joint Case Management Statement, and the ADR certification deadline, are hereby vacated. All other deadlines shall be based upon the new date for the initial case management conference.

IT IS SO ORDERED.

Dated: September 9, 2026

Hon. Ajay Krishnan
U.S. Magistrate Judge